

**Superior Court of Washington, County of King**\_\_\_\_\_

In re:

Petitioner/s (*person/s who started this case*):

Melvina Roberson aka Melvina Manning

And Respondent/s (*other party/parties*):

Zackariah Bennett

No. 08-3-03956-4 SEA

Motion for Order for:

Order to vacate judgement  
(MT)

**Motion for Order for:**

**To both parties:**

***Deadline!*** Your papers must be filed and served by the deadline in your county's Local Court Rules, or by the State Court Rules if there is no local rule. Court Rules and forms are online at [www.courts.wa.gov](http://www.courts.wa.gov).

If you want the court to consider your side, you **must**:

- File your original documents with the Superior Court Clerk; AND
- Give the Judge/Commissioner a copy of your papers (if required by your county's Local Court Rules); AND
- Have a copy of your papers served on all other parties or their lawyers; AND
- Go to the hearing.

The court may not allow you to testify at the motion hearing. Read your county's Local Court Rules, if any.

Bring proposed orders to the hearing.

**To the person filing this motion:**

You must schedule a hearing on this motion. You may use the *Notice of Hearing* (form FL All Family 185) unless your county's Local Court Rules require a different form. Contact the court for scheduling information.

**To the person receiving this motion:**

If you do not agree with the requests in this motion, file a statement (using form FL All Family 135, *Declaration*) explaining why the court should not approve those requests. You may file other written proof supporting your side.

**1. Relief Requested**

My name is: Zackariah Bennett\_\_\_\_\_. I ask the court to approve the following orders (*specify*):

**Order to vacate judgement**

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**2. Statement of Issues**

I ask the court to decide the following issues (*specify*):

The validity of the Order of Child Support entered on 9/20/2013, the status of named respondent as an obligatory parent, and current enforcement of the order by DCS.

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**3. Statement of Facts/Grounds**

These facts support my request (*list supporting facts*):

My parental rights were relinquished on 03/18/2013 upon approval by Snohomish County Superior Court. Melvina and John Manning were at that time vested with "...responsibility to care for and support the child..."

On 01/25/2016 a Satisfaction of Judgment was entered on this cause by DCS.

**4. Evidence Relied Upon**

I ask the court to consider this evidence (*list all declarations and other documents that support this request*):

2013 ORDER AUTHORIZING RELINQUISHMENT, TERMINATING PARENTAL RIGHTS AND GRANTING CUSTODY); RCW 26.33.090(4); RCW 26.33.130(2); 2016 Satisfaction of Judgment

**5. Legal Authority**

I have the right to ask for these orders according to the law (*describe the legal authority that supports your request*):

CR60(b)(6); RCW 26.33.090(4); RCW 26.33.130(2); RCW 26.11.010(1); RCW 13.34.030(19)

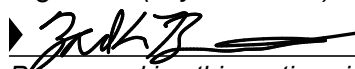
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**6. A Proposed Order (*check one*):** ☒ is ☐ is **not** attached to this *Motion*.

**Person making this motion fills out below**

I declare under penalty of perjury under the laws of the state of Washington that the facts I have provided on this form are true. ☒ I have attached (*number of*): 3\_\_\_\_ pages.

Signed at (*city and state*): Goldendale, WA\_\_\_\_\_ Date: 04/16/2023\_\_\_\_\_

  
Person making this motion signs here

Zackariah Bennett\_\_\_\_\_  
Print name here

I agree to accept legal papers for this case at (*check one*):

☐ my lawyer's address, listed below.

☒ the following address (*this does **not** have to be your home address*):

17 Old Mountain rd, Goldendale WA 98620

street address                      city                      state                      zip

(Optional) email: zackjbennett@gmail.com \_\_\_\_\_

(If this address changes before the case ends, you **must** notify all parties and the court clerk in writing. You may use the Notice of Address Change form (FL All Family 120). You must also update your Confidential Information form (FL All Family 001) if this case involves parentage or child support.)

### Lawyer (if any) fills out below

► \_\_\_\_\_  
Lawyer signs here                      Print name and WSBA No.                      Date

\_\_\_\_\_  
Lawyer's address                      city                      state                      zip

Email (if applicable): \_\_\_\_\_

**Warning!** Documents filed with the court are available for anyone to see unless they are sealed. Financial, medical, and confidential reports, as described in General Rule 22, **must** be sealed so they can only be seen by the court, the other party, and the lawyers in your case. Seal those documents by filing them separately, using a Sealed cover sheet (form FL All Family 011, 012, or 013). You may ask for an order to seal other documents.